> **DRAFT — for review by qualified counsel before use. This document is not legal advice.** Bracketed `[...]` fields are placeholders to be completed prior to signature. This is a **one-way (Recipient) non-disclosure agreement** protecting Noetic Compass as Disclosing Party; it can be converted to a mutual agreement on request (see Section 15).

NON-DISCLOSURE AGREEMENT

(One-Way — Recipient Obligations; convertible to mutual per Section 11)

This Non-Disclosure Agreement (this "**Agreement**") is entered into as of `[Date]` (the "**Effective Date**") by and between:

- **Noetic Compass** (also known as Noetic Compass AI), with a principal place of business at `[Company Address]` (the "**Company**" or "**Disclosing Party**"); and
- `[Recipient Full Name]`, an individual, on behalf of `[Recipient Entity, if any]` (the "**Recipient**").

The Company and the Recipient are referred to individually as a "**Party**" and collectively as the "**Parties**."

Background

The Company is developing and operating an artificial-intelligence model-audit product known as the **CAS Harness**, delivered on the **CAS Compass** platform (cascompass.ai), built on the Company's proprietary **Cognitive Architecture System (CAS)** framework. The Recipient wishes to receive certain confidential information from the Company in order to evaluate a potential business, commercial, or alpha-partnership relationship between the Parties (the "**Purpose**"). This Agreement is entered into **before** any such confidential information is disclosed, so that the Company's confidential information is protected at and from the moment of first disclosure. The Parties agree as follows.

1. Definition of Confidential Information

"**Confidential Information**" means any and all non-public information that the Company (directly or through its representatives) discloses or makes available to the

Recipient, in any form or medium — whether written, oral, electronic, visual, or otherwise, and whether or not marked or identified as "confidential" — in connection with the Purpose. Confidential Information includes, without limitation:

- a. the CAS framework, including its concepts, structures, methods, definitions, notation, and underlying theory;
- b. the CAS Harness product and the CAS Compass platform, including their design, architecture, features, interfaces, and operation;
- c. the Company's audit, scoring, evaluation, and analysis methodology, and any related techniques, models, algorithms, or processes;
- d. any specification sheet, technical document, datasheet, or other descriptive material concerning the foregoing (the "**Spec Sheet**");
- e. product, technical, and research roadmaps and development plans;
- f. business, commercial, financial, pricing, customer, partner, and strategic information; and
- g. alpha, pilot, evaluation, or pre-release results, findings, metrics, and outputs.

Confidential Information also includes the fact that the Spec Sheet and other materials exist, their contents, and any notes, analyses, summaries, or derivative materials prepared by the Recipient that contain, reflect, or are derived from any of the foregoing.

The Company's methods are **proprietary and patent-pending**. Nothing in this Agreement shall be read as a representation by the Company that any patent has issued or that any particular intellectual-property protection is in force.

2. Exclusions

Confidential Information does **not** include information that the Recipient can demonstrate by competent written records:

- a. is or becomes generally available to the public other than as a result of any act or omission of the Recipient or its representatives in breach of this Agreement;
- b. was rightfully known to the Recipient, free of any obligation of confidentiality, before its disclosure by the Company;
- c. is rightfully received by the Recipient from a third party who, to the Recipient's knowledge, is not under any obligation of confidentiality to the Company with

respect to that information; or

- d. is independently developed by the Recipient without use of, reference to, or reliance on the Confidential Information.

Compelled disclosure. If the Recipient is required by law, regulation, or valid legal process to disclose any Confidential Information, the Recipient may do so only to the extent legally required, and shall (to the extent legally permitted) give the Company prompt prior written notice so that the Company may seek a protective order or other appropriate remedy, and shall reasonably cooperate (at the Company's expense) with any such effort. Information disclosed under this paragraph remains Confidential Information for all other purposes.

3. Recipient's Obligations

The Recipient shall:

- a. **use the Confidential Information solely for the Purpose** — namely, to evaluate the potential relationship between the Parties — and for no other purpose;
- b. hold the Confidential Information in strict confidence and protect it using **at least the same degree of care** the Recipient uses to protect its own confidential information of similar importance, and in no event less than a **reasonable degree of care**;
- c. **not copy, reproduce, or duplicate** any Confidential Information except as reasonably necessary for the Purpose, and not remove or obscure any proprietary or confidentiality notices;
- d. **not reverse engineer, decompile, disassemble, or otherwise attempt to derive** the underlying structure, methods, source, or design of any Confidential Information, product, or methodology, or to recreate any part of the CAS framework, the CAS Harness, or the audit/scoring methodology;
- e. disclose Confidential Information only to those of its directors, officers, employees, affiliates, and professional advisors who have a **bona fide need to know** it for the Purpose, who are informed of its confidential nature, and who are bound by confidentiality obligations (whether by contract, professional duty, or this Agreement) at least as protective as those in this Agreement; and
- f. be **responsible for any breach** of this Agreement by any person to whom it discloses Confidential Information, as if the breach were the Recipient's own.

4. No License; No Rights Granted

All Confidential Information remains the sole and exclusive property of the Company. Nothing in this Agreement, and no disclosure made under it, grants or transfers to the Recipient any right, title, interest, license, or ownership — whether by implication, estoppel, or otherwise — in or to any Confidential Information or any patent, copyright, trade secret, trademark, or other intellectual-property right of the Company. No obligation of either Party to proceed with any transaction or relationship is created by this Agreement; any such transaction would be the subject of a separate written agreement.

5. Return or Destruction

Upon the Company's written request, or upon termination or expiration of this Agreement, the Recipient shall promptly (and in any event within `[fifteen (15)]` days) return or, at the Company's option, destroy all Confidential Information in its possession or control, together with all copies and derivative materials, and shall on request certify such return or destruction in writing. The Recipient may retain one archival copy solely to the extent required by law or bona fide internal record-retention policy, or copies created automatically by routine electronic backup; any retained material remains subject to this Agreement for as long as it is retained.

6. No Warranty

All Confidential Information is provided "**AS IS**." The Company makes **no representation or warranty**, express or implied, as to the accuracy, completeness, performance, or fitness for any purpose of any Confidential Information, and shall have no liability to the Recipient resulting from the Recipient's use of or reliance on the Confidential Information. Without limiting the foregoing, the Company does not warrant or guarantee any particular audit result, score, or outcome, and nothing disclosed shall be construed as a certification or guarantee of any AI system's behavior.

7. Term and Survival

This Agreement begins on the Effective Date and continues for a term of `[three (3)]` years, unless earlier terminated by either Party on `[thirty (30)]` days' written notice. The Recipient's obligations of confidentiality and non-use with respect to Confidential Information disclosed during the term shall **survive** for `[three (3)]` years following the date of disclosure; **provided that**, with respect to any Confidential Information

that constitutes a **trade secret** under applicable law, the Recipient's obligations shall continue for **as long as** that information remains a trade secret. Sections 4, 6, 8, 9, and 10 survive termination or expiration.

8. Remedies; Injunctive Relief

The Recipient acknowledges that any breach or threatened breach of this Agreement may cause the Company **irreparable harm** for which monetary damages would be an inadequate remedy. Accordingly, in addition to any other remedies available at law or in equity, the Company shall be entitled to seek **injunctive relief** and **specific performance** to enforce this Agreement, **without** the necessity of posting a bond or proving actual damages. The prevailing Party in any action to enforce this Agreement shall be entitled to recover its reasonable attorneys' fees and costs, to the extent permitted by applicable law.

9. No Publicity

The Recipient shall **not disclose to any third party** the existence of this Agreement, the fact that discussions or negotiations are taking place between the Parties, the status or terms of any such discussions, or that the Recipient has received or reviewed any Confidential Information, in each case without the Company's prior written consent — except as permitted under the compelled-disclosure provisions of Section 2. Neither Party shall use the other Party's name, logo, or trademarks in any public statement, advertising, or marketing without prior written consent.

10. General

- **10.1 Governing Law.** This Agreement is governed by, and construed in accordance with, the laws of the State of `[State of Governing Law]`, without regard to its conflict-of-laws principles. The Parties consent to the exclusive jurisdiction and venue of the state and federal courts located in `[State of Governing Law]` for any dispute arising out of or relating to this Agreement.
- **10.2 Entire Agreement; Amendments.** This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior or contemporaneous understandings, whether written or oral, on that subject matter. Any amendment or modification must be in **writing** and **signed** by both Parties.
- **10.3 No Waiver.** No failure or delay by a Party in exercising any right under this Agreement operates as a waiver, and no single or partial exercise of any right

precludes any further exercise of it.

- **10.4 Severability.** If any provision of this Agreement is held invalid or unenforceable, that provision shall be limited or modified to the minimum extent necessary to make it enforceable, and the remaining provisions shall remain in full force and effect.
- **10.5 Assignment.** The Recipient may not assign or transfer this Agreement, in whole or in part, without the Company's prior written consent. The Company may assign this Agreement in connection with a merger, acquisition, reorganization, or sale of all or substantially all of its assets. This Agreement binds and benefits the Parties and their permitted successors and assigns.
- **10.6 Counterparts; Electronic Signature.** This Agreement may be executed in counterparts, including by electronic signature and electronic delivery, each of which is deemed an original and all of which together constitute one and the same instrument.

11. Conversion to Mutual Agreement

This Agreement is drafted as a one-way agreement under which the Recipient receives and protects the Company's Confidential Information. If the Recipient will also disclose its own confidential information to the Company, the Parties may, on request, execute a **mutual** version of this Agreement in which the defined terms "Disclosing Party" and "Recipient" apply reciprocally to both Parties. *(Drafting note: the heading and parties block above include alternate language for this purpose.)*

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

DISCLOSING PARTY — NOETIC COMPASS	**RECIPIENT**
Signature: _____	Signature: _____
Name: `[Authorized Signatory]`	Name: `[Recipient Full Name]`
Title: _____	Title / Entity: `[Recipient Entity, if any]`
Date: `[Date]`	Date: `[Date]`

DRAFT — review by qualified counsel required before execution. Not legal advice. Section references and bracketed terms (governing law, term length, cure/return periods, one-way vs. mutual) are business/legal decisions to be confirmed by the Company and its counsel.